

STATE OF NEW YORK

7651--A

2025-2026 Regular Sessions

IN ASSEMBLY

April 4, 2025

Introduced by M. of A. CHLUDZINSKI -- read once and referred to the Committee on Local Governments -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend chapter 296 of the laws of 1992 incorporating the Rescue Volunteer and Exempt Firemen's Benevolent Association Inc., and providing for its powers and duties, in relation to the purpose of such corporation and the use of certain tax monies received

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Sections 3 and 7 of chapter 296 of the laws of 1992 incor-
2 porating the Rescue Volunteer and Exempt Firemen's Benevolent Associ-
3 ation Inc., and providing for its powers and duties, are amended to read
4 as follows:

5 § 3. Purposes. The purposes of such corporation shall be the mainte-
6 nance of suitable headquarters for the promotion of fraternal inter-
7 course among the members of such corporation~~[.]~~; the relief, aid and
8 assistance of [~~such~~] the volunteer members [~~and their families~~] of such
9 corporation who are disabled [~~or~~] indigent [~~and the promotion of the~~
10 ~~welfare of the volunteer fire service~~] or injured in performance of
11 their duties, and their families; to promote and safeguard the welfare
12 of the volunteer members of such corporation, and their families; to
13 provide for the health and safety of the volunteer member of the corpo-
14 ration; and to enhance the morale of the volunteer members of the corpo-
15 ration by providing social and recreational activities for the volunteer
16 members of the corporation, and the promotion of the volunteer fire
17 service within the territory protected by such fire department of the
18 Rescue Volunteer Hose Company No.1 of the Walden Fire District No. 2 in
19 the town of Cheektowaga, county of Erie.

20 § 7. Precept for the payment of foreign fire insurance premium taxes.
21 Such corporation shall collect and there shall be paid to it all taxes
22 imposed by section 9104 of the insurance law for fire department use and

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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benefit, upon premiums for insurance against loss or damage by fire covering property situated within the Walden Fire District No.2 in the town of Cheektowaga, located in Erie county, New York, or within any duly organized territory in which the fire district is or may be obligated to render fire protection. The officers of said corporation designated by its by-laws to collect and receive the aforesaid tax shall have all the powers and be subject to all the provisions of the insurance law, relating to treasurers of fire departments. Such corporation shall also be entitled to receive a share of the tax [~~distributed pursuant to the provisions of~~] imposed by section 9105 of the insurance law, based upon the business written in the territory with respect to which it is entitled to collect and receive the tax under section 9104 of the insurance law. Such taxes shall only be used [~~for the care and relief of disabled or indigent volunteer and exempt volunteer firemen and their families~~] by the corporation in furtherance of its purposes as set forth in section three of this act.

§ 2. This act shall take effect immediately; provided however, that the amendments to section 7 of chapter 296 of the laws of 1992 relating to incorporating the Rescue Volunteer and Exempt Firemen's Benevolent Association Inc., made by section one of this act, shall apply to taxes due on premiums received on and after January 1, 2026.